

Freelance Design Services Agreement

1. Parties

This Freelance Design Services Agreement ("Agreement") is entered into between Northshore Creative LLC ("Client") and Pixel & Co Studio ("Contractor"), effective as of the date of last signature.

2. Payment Terms

2.1 Client shall pay Contractor within thirty (30) days of receipt of each invoice. 2.2 Contractor may suspend work if payment is more than fifteen (15) days overdue, after providing written notice. 2.3 Late payments accrue interest at 1% per month on the overdue balance only.

3. Confidentiality

3.1 Each party shall protect the other's confidential information with reasonable care. 3.2 These obligations survive for two (2) years after termination. 3.3 Publicly available information and independently developed information are excluded.

4. Limitation of Liability

4.1 Neither party's liability shall exceed the total fees paid under this Agreement in the preceding six (6) months. 4.2 Neither party is liable for indirect or consequential damages.

5. Indemnification

5.1 Each party shall indemnify the other only for claims arising from its own gross negligence or willful misconduct, with prompt notice and reasonable cooperation in defense.

6. Termination

6.1 Either party may terminate this Agreement for convenience with fourteen (14) days' written notice. 6.2 Either party may terminate immediately for uncured material breach after ten (10) days' notice.

7. Assignment

7.1 Client may assign this Agreement, in whole or in part, to any third party at any time without notice to or consent from Contractor, including to a competitor of Contractor. 7.2 Contractor may not assign this Agreement or any rights or payments owed hereunder to any party under any circumstances, including in the event of Contractor's incapacity, without Client's prior written consent, which Client may withhold for any reason or no reason.

8. Force Majeure

8.1 Neither party is liable for delays caused by events beyond its reasonable control, provided it gives prompt notice and resumes performance as soon as reasonably possible.

9. Dispute Resolution

9.1 The parties shall attempt good-faith negotiation first. 9.2 Unresolved disputes shall be submitted to mediation, and if still unresolved, to binding arbitration under mutually agreed rules and a mutually agreed venue.

10. Governing Law

10.1 This Agreement is governed by the laws of the State of Oregon.